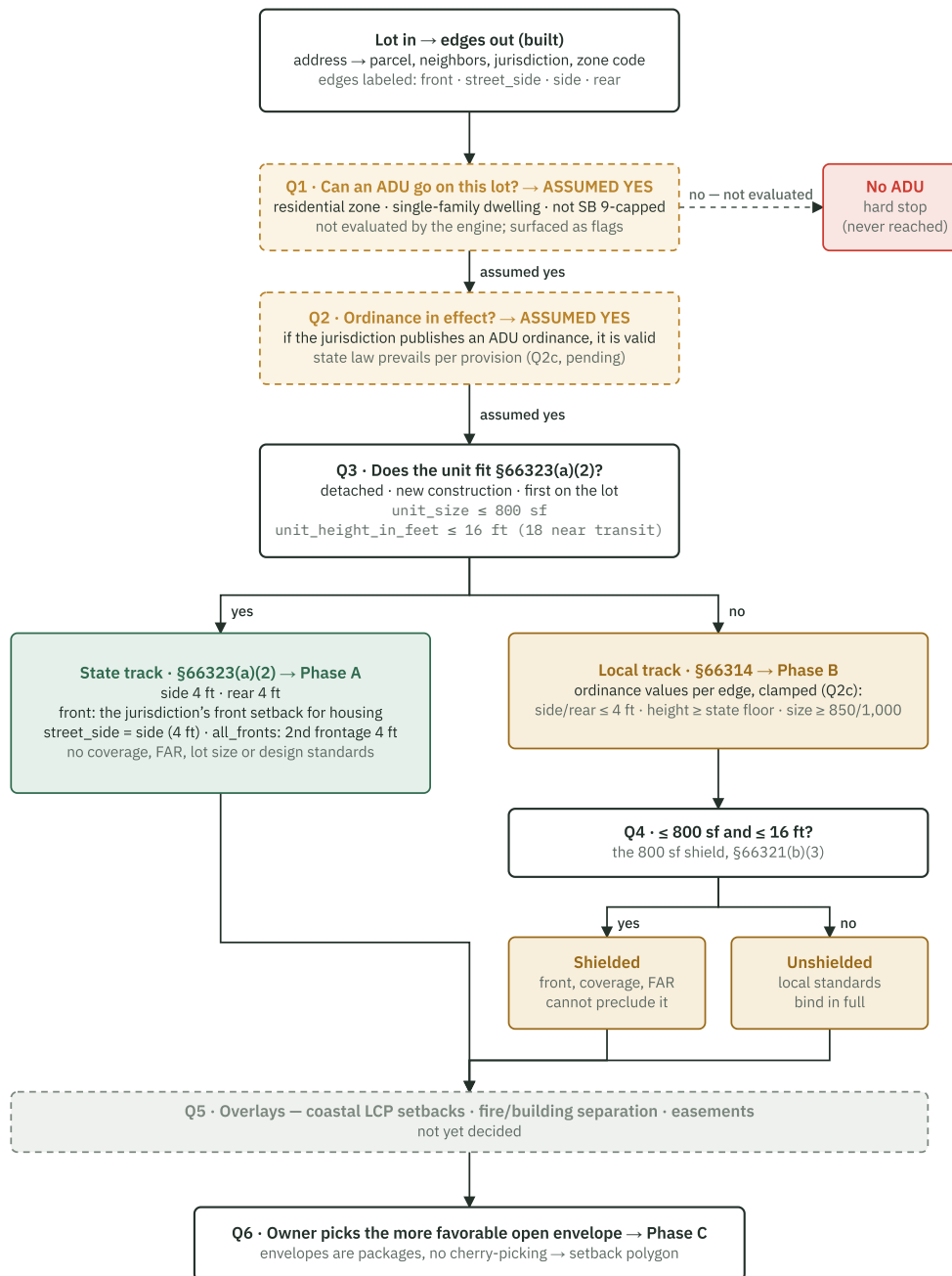


ADU Setback Decision Tree

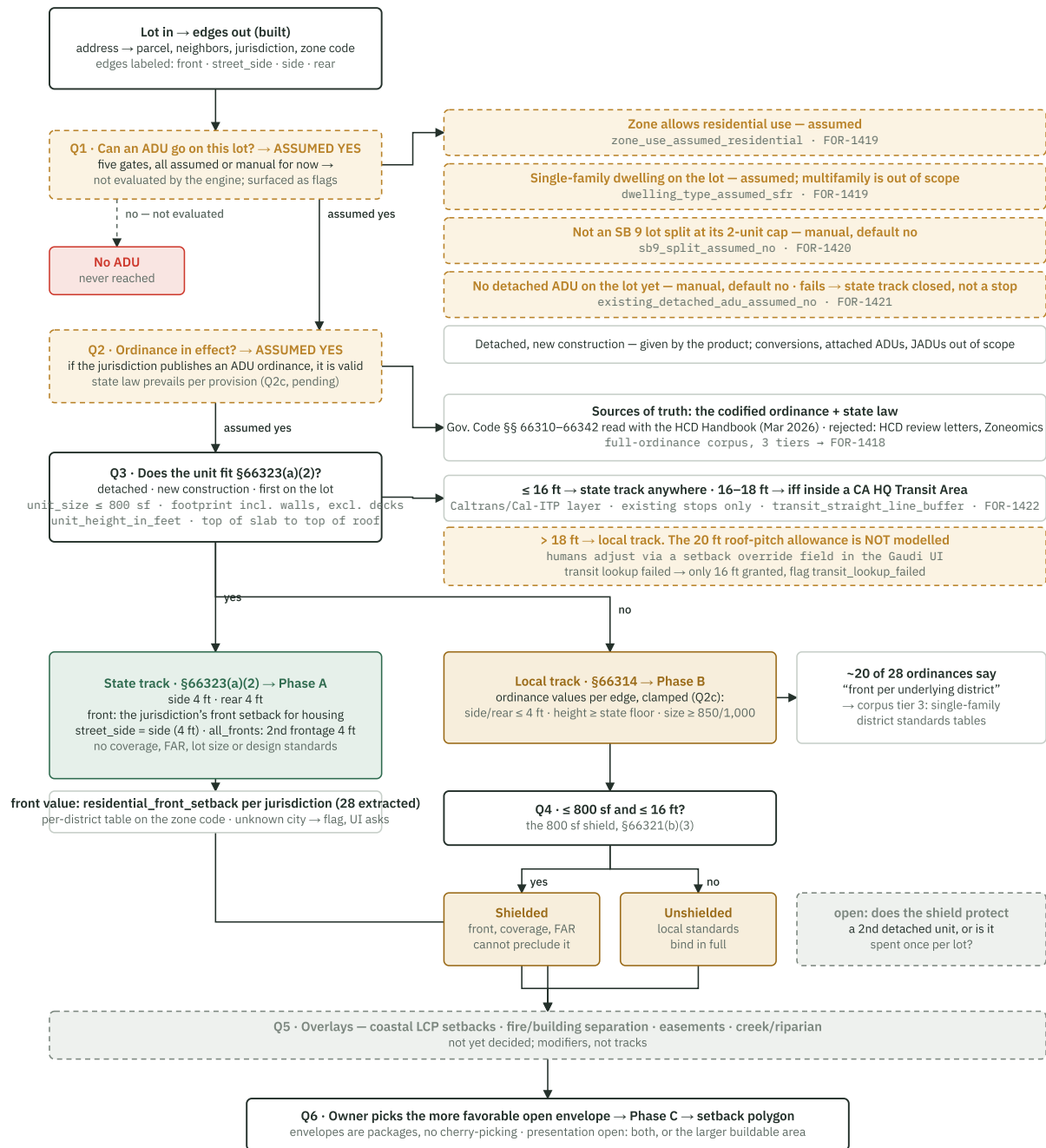
as of 2026-09-24 · Q1-Q2 assumed · Q3, Q4 decided · counsel answers on front / second front / measurement in · Q5, Q6 pending · Phase A prototyped in site repo · B, C next

Both views. Lean: the decisions the engine makes. Extended: the assumptions that reduced scope, each surfaced as a flag and tracked in Linear.



Lean view: the tree as the engine will walk it. Two regimes can be open at once; the owner chooses.

- decision
- state track §66323
- local track §66314
- hard stop
- assumed yes — not evaluated, surfaced as a flag
- not yet decided



Extended view: every gate the engine assumes or asks the user for, the flag it raises, and the Linear issue that will replace the assumption.

SCOPE ASSUMPTIONS → LINEAR

- FOR-1419** Zone allows residential use, and the lot holds a single-family dwelling. Flags `zone_use_assumed_residential`, `dwelling_type_assumed_sfr`. Multifamily = out of scope.
- FOR-1420** Parcel is not an SB 9 lot split at its two-unit cap. Manual yes/no, default no. Flag `sb9_split_assumed_no`.
- FOR-1421** No detached ADU exists on the lot yet, so the §66323(a)(2) entitlement is open. Manual yes/no, default no. Flag `existing_detached_adu_assumed_no`.
- FOR-1422** Transit proximity is tested against the Caltrans HQ Transit Area half-mile *straight-line* buffers (existing stops only); the statute says walking distance. Flag `transit_straight_line_buffer`. Refinement: Google walking distance to the nearest HQ stops.
- FOR-1418** Parent: values extraction. Full-ordinance corpus scrape (3 tiers) running in a separate session.

DECIDED, AND WHAT WAS REJECTED

- Q1 · assumed yes** The lot is eligible. Detached, new construction only — conversions, attached ADUs and JADUs are not FormX products.
- Q2 · assumed yes** A published ADU ordinance is in effect; no status lookup. Sources of truth: the codified ordinance and Gov. Code §§ 66310–66342 read with the HCD Handbook (Mar 2026). **Rejected as sources:** HCD review letters, Zoneomics data.
- Q3** Size fork at 800 sf, measured as the footprint incl. exterior walls, excl. decks (counsel 2026-09-24). Height, top of slab to top of roof: ≤ 16 ft anywhere; 16–18 ft inside a CA HQ Transit Area; > 18 ft → local track. The 20 ft roof-pitch allowance is left to a human override in the Gaudi UI. Both unit inputs manual and required; names follow Gaudi: `unit_size`, `unit_height_in_feet`.
- Phase A** Prototyped in the site repo (2026-09-23):
`services/compute/adu_setbacks/`,
`services/parcel_data/ca_transit_client.py`,
`POST /adu/evaluate`, debug-UI inputs and the FOR-438 red band. 141 unit tests green; verified on a live Sunnyvale lot.
- Front** State track front = the jurisdiction's default front setback for housing (counsel 2026-09-24): §66323(a)(2) fixes side and rear only, so the local front number stands. One field per jurisdiction, `residential_front_setback`, extracted for all 28 on 2026-09-24 from the code tables (base district value + a per-district table matched on the parcel's zone code; 13 × 20 ft, 6 × 25 ft, 4 × 15 ft, Atherton 60, Portola Valley 50, Los Altos Hills 40, Fairfax 10, Sausalito 0). Unknown jurisdiction → no value, flag `front_setback_missing`. **Rejected:** front = 0 ft.
- Q4** Inside the local track, a unit ≤ 800 sf and ≤ 16 ft is shielded: front setback, coverage, FAR and open space cannot preclude it (§66321(b)(3)).
- Street side** A `street_side` edge is a side (state 4 ft cap applies) unless the jurisdiction is `all_fronts`, where the labeler's `second_front` flag marks it. Counsel 2026-09-24: on the state track the address street is *the* front (local value) and the second frontage takes the state 4 ft. No pending flag any more.
- Tracks** Envelopes are computed as packages — no cherry-picking provisions across the state and local tracks. Build order: Phase A state track → Phase B local track → Phase C choice.

STILL TO DECIDE

Q2c Per-provision preemption: local value vs. state rule for each edge, computed from the corpus.

Hila Do planning counters measure transit walking distance, or accept the HQTAs buffers? (FOR-1422). Verified 2026-09-24: buffers are 0.5 mi; major stops (rail, BRT, bus, ferry) and HQ bus corridors are all in the layer.

Q4 Does the 800 sf shield protect a second detached unit, or is it spent once per lot?

Q5 Overlays: coastal LCP setbacks, fire/building-code separation, recorded easements, creek/riparian setbacks.

Q6 How to present the owner's choice when both tracks are open — both envelopes, or the larger buildable area.